

**BOROUGH OF FAIRVIEW
BERGEN COUNTY, NEW JERSEY
MINUTES OF THE CAUCUS MEETING
HELD ON AUGUST 20, 2024 AT 6:00 PM**

Mayor Violetta Berisha called the meeting to order at 6:00 PM

Roll Call

In accordance with the Open Public Meetings Act, a notice of all Caucus & Council Meetings have been posted on the Borough Bulletin Board. Notice has been provided to at least two Official Borough Newspapers & filed with the Borough Clerk's Office.

In Attendance: Councilman Martin
Councilman Jhon Gomez
Councilwoman Florencia Asto
Councilman Stephen Burke

Councilman Kenneth Schmitt
Mayor Violetta Berisha

Absent: Councilman Albert Lukin

Also in Attendance: John L. Schettino, Borough Attorney
Emma Rush, Esq.
Diane T. Testa, Borough Administrator/Clerk
Vincent M. Bellucci, Police Chief
Berge Tombalakian, Acting Superintendent of Public Works/Engineer

To Appear

Vincent M. Bellucci, Police Chief

RE: Various Reports

Hi, good evening, it has been a quiet month. I would like to hire additional crossing guards and also Special Police Officers. The Special Police Officers will have to attend the academy which begins in the middle of September. It's a 6 week program. Also on the agenda for the councils' consideration is the purchase of a pistol range modular trailer.

When I was away last week there was a swatting incident in lower Fairview, you might have read about in the paper. It was contained and was specific to the people in that house and everyone was appropriately charged.

PSE&G will begin working on the gas lines on the eastbound side of Fairview Ave, so Fairview Ave will be closed eastbound from Broad to Prospect and the work is anticipated to last 7 to 10 days.

We have officers assigned to direct traffic and will send out a robo call to the residents.

Berge Tombalakian, Borough Engineer

RE: Various Reports

Thank you Mayor and Members of the Council, on your agenda tonight is an awards resolution for the 2024 Road Improvements Program, awarding a contract of approximately \$531,000 to DLS Contracting. This project combines municipal funds, a CD grant for 9th Street, and catch basin retrofits funded through a previous capital ordinance.

Regarding Prospect Avenue, complaints about cut-through traffic were mentioned. The council is considering various traffic control options, some requiring NJ DOT coordination. A detailed review will be circulated, and discussions may continue in September.

A report on Sunday night's storm noted heavy rainfall (1.5 inches in 30 minutes), causing localized flooding. An emergency contractor will inspect main drainage lines to ensure maximum system performance.

Updates on various infrastructure projects:

Tiger Hose Roof repairs are nearly done, pending metal flashing and downspout installation.

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Pistol Range Project is progressing, awaiting gas meter installation, electrical demolition, and sewer/water extensions before finalizing the parking lot.

Senior Center Roof and Facade work is pending contractor performance bonds.

9th Street Repaving: A section will be funded by a CD grant, and another portion by Borough funds to complete the full street in phases.

Lastly, the Borough has been addressing stormwater drainage upgrades as part of road projects. Some catch basins are outdated and require full replacements, sometimes triggering additional work like new curbs, sidewalks, and ADA-compliant ramps. The town's drainage system is not designed for extreme storms, but flooding from the recent event receded quickly.

The pistol range building, damaged during Hurricane Ida, is being rebuilt using FEMA and insurance funds, with plans to accommodate a new trailer office.

To Discuss

Movie Night in the Park

September 7, 2024

Columbus Park - 8PM

Sponsored by Waste Management

Shredding Event

September 14, 2024

Hosted by BCUA

Borough Hall parking Lot

Pledge of Allegiance

Roll Call

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To Approve

Resignation of Police Officer Samer Abulebda #46

Motion to Approve Resignation of Police Officer Samer Abulebda #46

Moved by: Lukin Seconded by: Gomez

Ayes: Martin, Gomez, Asto, Lukin, Burke, Schmitt

Nays: None

Absent: None

No Vote: None

Table:

Roll Call Vote Results: 6-0-0-0-0

Consent Agenda Resolutions *R-24-145 through

***R-24-145 AUTHORIZING SUBMISSION OF STRATEGIC PLAN FOR MUNICIPAL ALLIANCE**

WHEREAS, the Governor's Council on Alcoholism and Drug Abuse established the Municipal Alliances for the Prevention of Alcoholism and Drug Abuse in 1989 to educate and engage residents, local government and law enforcement officials, schools, nonprofit organizations, the faith community, parents, youth and other allies in efforts to prevent alcoholism and drug abuse in communities throughout New Jersey; and

WHEREAS, the Borough Council of the Borough of Fairview, County of Berge, State of new jersey

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recognizes that the abuse of alcohol and drugs is a serious problem in our society amongst persons of all ages and therefore has an established Municipal Alliance Committee; and

WHEREAS, the Borough Council further recognizes that it is incumbent upon not only public officials but upon the entire community to take action to prevent such abuses in our community; and

WHEREAS, the Borough Council has applied for funding to the Governor's Council on Alcoholism and Drug Abuse through the County of Bergen.

NOW, THEREFORE, BE IT RESOLVED, by the Mayor and Council of the Borough of Fairview, County of Bergen, State of New Jersey hereby recognizes the following: 1. The Borough Council does hereby authorize submission of a strategic plan for the Fairview Municipal Alliance grant for the fiscal year 2025 in the amount of

DEDR \$4,507.18

CASH MATCH \$1,126.80

IN-KIND \$3,380.39
TOTAL ALLIANCE BUDGET (add A+B+C) \$9,014.37

2. The Borough Council acknowledges the terms and conditions for administering the Municipal Alliance grant, including the administrative compliance and audit requirements.

***R-24-146 AUTHORIZATION TO HIRE CROSSING GUARD**

WHEREAS, the Borough of Fairview is in need of Crossing Guards to supplement the Police Department; and

WHEREAS, the Mayor and Council of the Borough of Fairview wish to fill this position; and

WHEREAS, the Police Committee recommends the appointment of Ghizlane Ait All Oumansour as per diem Crossing Guards to the Fairview Police Department.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that Ghizlane Ait Ali Oumansour be appointed for 2024-2025 as per diem Crossing Guards; and

BE IT FURTHER RESOLVED that the Administrator/Borough Clerk be and she is hereby authorized and directed to forward a certified copy of this Resolution to the Police Chief, finance department, Ghizlane Ait Ali Oumansour immediately upon its passage.

***R-24-147 AUTHORIZATION TO HIRE SPECIAL POLICE OFFICERS**

WHEREAS, N.J.S.A. 40A:14-146 enables the Governing Body to appoint Special Law Enforcement Officer Class 1 for a term not exceeding one (1) year, whenever they deem it necessary; and

WHEREAS, N.J.S.A. 40A:14-146 provides for the appointment of Special Law Enforcement Officer Class 1; and

WHEREAS, said statute further requires that before any special appointment is made, the Police Chief is to ascertain the eligibility and qualifications of the applicant and report thereon to the Governing Body; and

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WHEREAS, the Chief of Police has recommended that in accordance with the aforesaid statute the following be appointed as Special Law Enforcement Officer Class 1: Andrea Carvajal, Andre Vassell and Mateo D. Sanchez; and

WHEREAS, the Mayor and Council are desirous of appointing the above mentioned individuals as Special Law Enforcement Officer Class 1 officers in accordance with the aforesaid statute; and

WHEREAS, the Governing Body has considered the term of these appointments to be until December 31, 2024 at a salary to be paid per salary ordinance.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that Andrea Carvajal, Andre Vassell and Mateo D. Sanchez; be appointed as Special Law Enforcement Officer Class 1 officers until December 31, 2024 effective immediately at a salary per salary ordinance; and

BE IT FURTHER RESOLVED that the Administrator/Borough Clerk be and she is hereby authorized and directed to forward a certified copy of this Resolution to the Police Chief, finance department and Andrea Carvajal, Andre Vassell and Mateo D. Sanchez; immediately upon its passage.

***R-24-148 AUTHORIZATION OF CONTRACT WITH FOVEONICS FOR DIGITIZATION OF DOCUMENTS**

WHEREAS, the Borough of Fairview has a need to digitize their paper archives so as to be compliant with NJ State procedures; and

WHEREAS, the Borough of Fairview has received a grant award in the amount of \$300,000.00 to help offset the cost of digitizing the documents within the Borough to make them more accessible to the public; and

WHEREAS, N.J.S.A. 40A:11-10(a)(1) permits the Borough of Fairview to purchase items and provide services without the necessity of competitive bidding under the Educational Services Commission of New Jersey Cooperative Pricing Agreement #65MCESCCPS; and

WHEREAS, Administration, Police Department and Building Department, have a need for records management services; and

WHEREAS, Foveonics Imaging Technology Inc., d/b/a/ Foveonics Documents Solutions, 99 Grayrock Road, Unit 103, Clinton, New Jersey 08809 is the provider of digitization through ESCNJ #65MCESCCPS; and

WHEREAS, the departments have reviewed the process of digitizing their documents and retrieving same documents; and

WHEREAS, the cost of digitizing the documents for Administration will be \$26,079.98, Police Department \$95,951.92 and building Department \$140,365.95 plus a yearly cost of \$11,860.00 for all departments; and

WHEREAS, the Governing Body hereby approves the contracts with Foveonics for the digitization of documents in the amount of \$262,397.85; and

WHEREAS, the Chief Financial Officer has certified that funds are available for this purchase in Bond #24-04; and

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NOW, THEREFORE, BE IT RESOLVED, by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey hereby approve the Contracts with Foveonics for digitization of documents for Administration, Police and Building Department in the amount of \$262,397.85 plus service and set up fees of \$11,860.00 for a total of \$274,257.85 from The Educational Services Commission of New Jersey (ESCNJ)#65MCESCCPS; and

BE IT FURTHER RESOLVED that the Administrator/Borough Clerk be and she is hereby authorized and directed to forward a certified copy of this Resolution to the Police and Building Department and Foveonics immediately upon its passage.

***R-24-149 AUTHORIZING PLACE TO PLACE TRANSFER OF LIQUOR LICENSE**

WHEREAS; an application has been filed for a place-to-place transfer of Plenary Retail Consumption License 0218-33-018-009, heretofore issued to SEC Fairview Corporation for premises located at 76 Anderson Avenue, Fairview, New Jersey.

WHEREAS; the submitted application form is complete in all respects, the transfer fees have been paid, and the license has been properly renewed for the current license term; and

WHEREAS, the applicant is qualified to be licensed according to all standards by Title 33 of the New Jersey State Statutes, regulations promulgated thereunder, as well as pertinent local ordinances and conditions consistent with Title 33; and

NOW, THEREFORE, BE IT RESOLVED, that the Mayor and Council of the Borough of Fairview does hereby approve, effective August 20, 2024, the place-to-place transfer of the aforesaid Plenary Retail Consumption License as an inactive license with a mailing address of 18 William Terrace, Cliffside Park, NJ, and does hereby direct the Municipal Court to endorse the license certificate to the new ownership as follows: "This License, subject to all terms and conditions, is hereby transferred to premises located at 76 Anderson Avenue, Fairview, NJ, 07022, effective August 20, 2024.

***R-24-150 AUTHORIZATION OF BLUE COLLAR AGREEMENT**

WHEREAS, Blue Collar employees and the Borough of Fairview entered into a Memorandum of Understanding from September 1, 2018 through December 31, 2023; and

WHEREAS, the Blue Collar employees and the Borough of Fairview have reached an agreement that is set forth in the attached Memorandum of Understanding for the term January 1, 2024 through December 31, 2026

WHEREAS, the proposed Memorandum of Understanding is attached hereto and made part of this resolution as if set forth at length herein.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that the proposed Memorandum of Understanding for the term of January 1, 2024 through December 31, 2026 is hereby approved; and

BE IT FURTHER RESOLVED that the Administrator/ Municipal Clerk be and she is hereby authorized and directed to forward a certified copy of this resolution to the representative of the Blue Collar employees, Chief Financial Officer and Payroll immediately upon its passage.

***R-24-151 AUTHORIZATION OF WHITE COLLAR AGREEMENT**

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WHEREAS, White Collar employees and the Borough of Fairview entered into a Memorandum of Understanding from September 1, 2018 through December 31, 2023; and

WHEREAS, the White Collar employees and the Borough of Fairview have reached an agreement that is set forth in the attached Memorandum of Understanding for the term January 1, 2024 through December 31, 2026

WHEREAS, the proposed Memorandum of Understanding is attached hereto and made part of this resolution as if set forth at length herein.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that the proposed Memorandum of Understanding for the term of January 1, 2024 through December 31, 2026 is hereby approved; and

BE IT FURTHER RESOLVED that the Administrator/ Municipal Clerk be and she is hereby authorized and directed to forward a certified copy of this resolution to the representative of the White Collar employees, Chief Financial Officer and Payroll immediately upon its passage.

***R-24-152 AUTHORIZATION OF POLICE AGREEMENT**

WHEREAS, the Borough of Fairview has been engaged in negotiations with the Police Department Officials; and

WHEREAS, the Borough of Fairview and the Police Department have reached an Agreement in connection with said contract negotiations; and

WHEREAS, the Borough Administrator and Police Committee have reviewed the proposed terms for the term of January 1, 2023 through December 31, 2026 and recommends its approval; and

WHEREAS, the proposed Memorandum of Agreement is attached hereto and made as part of this Resolution as set forth at length herein.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that the Agreement between the Borough of Fairview and the Police Department Employees for the term of January 1, 2023 through December 31, 2026 be and is hereby approved; and

BE IT FURTHER RESOLVED that the Mayor is hereby authorized and directed to execute the Agreement on behalf of the Borough of Fairview; and

BE IT FURTHER RESOLVED that the Administrator/Borough Clerk be and she is hereby authorized and directed to forward a certified copy of this Resolution to the Police Department representatives, the Chief Financial Officer and payroll department immediately upon its passage.

***R-24-153 AUTHORIZATION OF POLICE CHIEF CONTRACT**

WHEREAS, Vincent Bellucci, presently holds the title of Police Chief in the Fairview Police Department; and

WHEREAS, the Borough wishes to enter into a written contract with Vincent Bellucci in his position as Police Chief; and

WHEREAS, a Contract has been prepared between the Borough of Fairview and Vincent Bellucci

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as Police Chief for the Borough commencing on August 15, 2023 and concluding December 31, 2026; and

WHEREAS, the annual salary for said position to be in accordance with the annual salary as set forth in the salary ordinance for said year;

WHEREAS, the Administrator/Municipal Clerk and the Personnel Committee have reviewed said contract and approves of same.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that the Agreement between the Borough of Fairview and Vincent Bellucci, Police Chief commencing August 15, 2023 be and is hereby approved; and

BE IT FURTHER RESOLVED that the Mayor is hereby authorized and directed to execute the attached Agreement on behalf of the Borough of Fairview; and

BE IT FURTHER RESOLVED that the Administrator/Borough Clerk be and she is hereby authorized and directed to forward a certified copy of this Resolution to Vincent Bellucci and to place a copy of same in his personnel file immediately upon its passage.

***R-24-154 AUTHORIZATION OF DEPUTY POLICE CHIEF CONTRACT**

WHEREAS, John Pierotti, Jr. presently holds the title of Deputy Police Chief in the Fairview Police Department; and

WHEREAS, the Borough wishes to enter into a written contract with John Pierotti, Jr. in his position as Deputy Police Chief; and

WHEREAS, a Contract **has** been prepared between the Borough of Fairview and John Pierotti as Deputy Police Chief for the Borough commencing on August 15, 2023 and concluding December 31, 2026; and

WHEREAS, the annual salary for said position to be in accordance with the annual salary as set forth in the salary ordinance for said year;

WHEREAS, the Administrator/Municipal Clerk and the Personnel Committee have reviewed said contract and approves of same.

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Council of the Borough of Fairview, County of Bergen and State of New Jersey that the Agreement between the Borough of Fairview and John Pierotti, Jr., Deputy Police Chief commencing August 15, 2023 be and is hereby approved; and

BE IT FURTHER RESOLVED that the Mayor is hereby authorized and directed to execute the attached Agreement on behalf of the Borough of Fairview; and

BE IT FURTHER RESOLVED that the Administrator/Borough Clerk be and she is hereby authorized and directed to forward a certified copy of this Resolution to John Pierotti, Jr. and to place a copy of same in his personnel file immediately upon its passage.

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***R-24-156 AUTHORIZATION OF ACTING SUPERINTENDENT OF PUBLIC WORKS/ENGINEER CONTRACT**

***R-24-157 TAX REDEMPTION 485 WESTVIEW PLACE**

WHEREAS, on August 15, 2024, a redemption was executed on Tax Sale Certificate #23-002 on Block 309, Lot 13, 485 Westview PL purchased by "FundPality II, LLC" 100 N Lasalle, Ste. #710, Chicago, IL 60602.

WHEREAS, said certificate was assigned to "FundPality II, LLC", 100 N Lasalle, Ste #710 Chicago, IL 60602 on January 9th, 2024,

WHEREAS, A Premium amount of \$28,000.00 was bid and paid to the Borough of Fairview for Tax Sale Certificate #23-002 on the day of sale,

WHEREAS, said redemption money was received in a bank certified check in the amount of \$22,161.86 and deposited in our Trust Other Account on 08/02/2024,

NOW THEREFORE BE IT RESOLVED, that the Governing Body of the Borough of Fairview approve payment of the redemption sum in the amount of \$50,161.86 to "FundPality II, LLC", N Lasalle, Ste #710, Chicago IL 60602.

BE IT FURTHER RESOLVED, that the Tax Collector and Treasurer are authorized and directed to effect same.

R-24-158 APPROVING TAX REFUND FOR OVERPAYMENT OF TAXES

WHEREAS, there exists an of **overpayment 3rd Quarter 2024 taxes** on Block **415**, Lot 1, known as **344 Bergen Boulevard** assessed to "**Quirola LLC**" and,

WHEREAS, said overpayment of taxes in the amount of **\$6,606.90 for 3rd Quarter 2024** is a result of both the Mortgage Company and the taxpayer paying the **3rd Quarter** taxes independently of each other and,

THEREFORE BE IT RESOLVED that the Governing Body of the Borough of Fairview approve the **refund of \$6,606.90 to "Quirola LLC", 344 Bergen Boulevard, Fairview NJ, 07022** and,

BE IT FURTHER RESOLVED that the Tax Collector is authorized and directed to effect same.

R-24-159 AUTHORIZATION OF CDBG GRANT AGREEMENT

WHEREAS, Community Development Block Grant of \$26,000.00 has been awarded to the Borough of Fairview for its Community Center Air Filtration project; and

WHEREAS, the aforesaid project is in the best interest of the people of the Borough of Fairview; and

WHEREAS, the Mayor and Council of Fairview wish to enter into a grant agreement with the County of Bergen for the purpose of using \$26,000.00 Community Development Block Grant funds for the Community Center Air Filtration project; and

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WHEREAS, that the Mayor and Council hereby authorized the Mayor to be a signatory to aforesaid Grant Agreement.

NOW, THEREFORE, BE IT RESOLVED that the Governing Body of Fairview Borough hereby confirms endorsement of the aforesaid project and wishes to enter into a grant agreement with the County of Bergen for the purpose of using \$26,000.00 Community Development Block Grant funds for Community Center Air Filtration; and

BE IT FURTHER RESOLVED, that the Mayor and Council hereby authorizes the Mayor to be a signatory to aforesaid Grant Agreement; and

BE IT FURTHER RESOLVED, that the Mayor and Council hereby authorizes Christopher Rutch, to sign all County vouchers submitted in connection with the aforesaid project; and

BE IT FURTHER RESOLVED, that the Mayor and Council recognizes that the Borough of Fairview is liable for any funds not spent in accordance with the Grant Agreement, and that liability of the Mayor and Council is in accordance with HUD requirements.

R-24-160 AWARDING 2024 ROAD IMPROVEMENT PROJECT

WHEREAS, the Borough of Fairview received bids for the 2024 Road Improvement Program on August 15, 2024; and,

WHEREAS, the aforesaid project is to be performed by the Borough of Fairview with funds available by Ordinance and has provided a Certification of the Availability of Funds (CAF) utilizing the following accounts in accordance with law; and,

04-2150-55-2404-001	\$325,000.00
04-2150-55-2404-003	\$ 98,782.00
04-2150-55-2207-002	\$ 75,879.96
04-2150-55-2109-004	\$ 28,272.22
04-2150-55-1904-001	\$ 3,136.32
Total	\$531,070.50

WHEREAS, the aforesaid project is in the best interest of the people of Fairview; and,

WHEREAS, Berge V. Tombalakian, P.E. Acting Public Works Superintendent / Engineer has reviewed the bid from DLS Contracting to construct the improvements for a price of \$ 531,070.50 (base bid), which is the lowest of the five (5) bids received and finds it to be acceptable; and,

NOW THEREFORE, BE IT RESOLVED, by the Mayor and Council of the Borough of Fairview that the proposal of DLS Contracting, 36 Montesano Road, Fairfield, NJ 07004 in the amount of \$531,070.50 (base bid only) is hereby accepted.

BE IT FURTHER RESOLVED, that the Borough Attorney John L. Schettino, Esq. be and he is hereby authorized to prepare the necessary documents and that the Mayor is hereby authorized to execute same on behalf of the Borough of Fairview.

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R-24-161 AUTHORIZING A \$9,700,000.00 BOND ANTICIPATION NOTE DATED AUGUST 23, 2024 PAYABLE AUGUST 22, 2025

WHEREAS, the Borough of Fairview, in the County of Bergen, New Jersey (the "Borough") from time to time issues bonds, notes and other obligations, the interest on which is excluded from gross income for Federal income tax purposes, and desires to take such action as may be necessary or advisable to establish and maintain such exclusion; and

WHEREAS, the Internal Revenue Code of 1986, as amended (the "Code"), contains provisions with respect to the exclusion from gross income for Federal income tax purposes of interest on obligations, including provisions, among others, which require issuers of tax-exempt obligations, such as the Borough to account for and rebate certain arbitrage earnings to the United States to Treasury and to take other action to establish and maintain such Federal tax exclusion; and

WHEREAS, the Borough desires to designate a \$9,700,000 Bond Anticipation Note, dated August 23, 2024, payable August 22, 2025 (the "Note"), as a "qualified tax-exempt obligation" pursuant to Section 265 (b) (3) of the Code;

NOW, THEREFORE, BE IT RESOLVED by the Borough Council of the Borough of Fairview, in the County of Bergen, New Jersey, as follows:

SECTION 1. The Borough Council hereby covenants on behalf of the Borough, to the extent permitted by the Constitution and the laws of the State of New Jersey, to do and perform all to acts and things permitted by law and necessary to assure that interest paid on bonds, notes or other obligations of the Borough (including the Note) be and remain excluded from gross income of the owners thereof for Federal income tax purposes pursuant to Section 103 of the Code.

SECTION 2. The Mayor, Borough Clerk, Chief Financial officials of the Borough are hereby Officer and the other authorized and directed to take such action, make such representations and give such assurances as they may deem necessary or advisable to effect compliance with the Code.

SECTION 3. The Note is hereby designated as a "qualified tax-exempt obligation" for the purpose of Section 265 (b) (3) of the Code.

SECTION 4. It is hereby determined and stated that (1) said Note is not a "private activity bond" as defined in the Code. and (2) the Borough and its subordinate entities, if any, do not reasonably anticipate issuing in excess of \$10 million of new money tax-exempt obligations (other than private activity bonds) during the calendar year 2024.

SECTION 5. It is further determined and stated that the Borough has not, as of the date hereof, issued any tax-exempt obligations (other than the Note) during the calendar year 2024.

SECTION 6. The Borough will, to the best of its ability, attempt to comply with respect to the limitations on issuance of tax-exempt obligations pursuant to Section 265 (b) (3) of the Code; however, said Borough does not covenant to do So, and hereby expressly states that a covenant is not made hereby.

SECTION 7. The issuing officers of the Borough are hereby authorized to deliver a certified copy of this resolution to the original purchaser of the Note and to further provide such original purchaser with a certificate of obligations issued during the calendar year 2024 dated as of the date of delivery of the note.

SECTION 8. This resolution shall take effect immediately upon its adoption.

R-24-162 REQUESTING THE APPROVAL OF ITEMS OF REVENUE AND APPROPRIATION

WHEREAS, N.J.S.A. 40A: 4-87 provides that the Director of the Division of Local Government Services may approve the insertion of any special item of revenue in the budget of any county or municipality when

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such item shall have been made available by law and in the amount thereof was not determined at the time of the adoption of the budget; and

WHEREAS, said Director may also approve the insertion of any item of appropriation for equal amount; and

NOW, THEREFORE, BE IT RESOLVED that the Borough of Fairview, in the County of Bergen, New Jersey hereby requests the Director of the Division of Local Government Services to approve the insertion of an item of revenue in the budget of the year 2024 in the sum of \$7,000.00 which item is now available as a revenue from the 2024 Drive Sober or Get Pulled Over Statewide Labor Day Crackdown, and

BE IT FURTHER RESOLVED that the like sum of \$7,000,00 is hereby appropriated under the caption 2024 Drive Sober or Get Pulled Over Statewide Labor Day Crackdown ""; and

BE IT FURTHER RESOLVED that the above is a result of a grant of \$7,000.00 from the 2024 Drive Sober or Get Pulled Over Statewide Labor Day Crackdown.

Payment of Claims 24-17

FINANCE \$4,174,312.42

Ordinances 24-09 through 24-11

2nd & Final Reading

**24-12 AN ORDINANCE AMENDING THE SALARY ORDINANCE OF THE
BOROUGH OF FAIRVIEW**

BE IT ORDAINED by the Mayor and Council of the Borough of Fairview, County of Bergen, State of New Jersey, that the Borough’s Salary Ordinance is hereby amended as follows:

Section I - “Salaries & Wages for the following positions within the Borough of Fairview shall be as follows:

POSITIONS	MIN	MAX
GOVERNING BODY		
Mayor	\$16,000	\$20,000
Council Members	\$14,000	\$18,000
WHITE COLLAR		
Court Administrator	\$65,000	\$110,000
Deputy Court Admin	\$50,000	\$70,000
Clerk 1	\$45,000	\$55,000
Account Clerk	\$45,000	\$65,000
Senior Account Clerk	\$55,000	\$75,000
Parking Enforcement	\$45,000	\$65,000
PATROL		
Police	\$38,000	\$140,000
Sergeant	\$135,000	\$147,000
Lieutenant	\$140,000	\$158,000
Captain	\$150,000	\$169,000
Deputy Chief	\$155,000	\$185,000
Chief	\$170,000	\$195,000
DPW		

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Truck Driver (prior to 2000)	\$70,000	\$82,000
Road Repairer 3 (prior to 2000)	\$90,000	\$125,000
Laborer	\$35,000	\$45,000
Building Maintenance Worker	\$45,000	\$60,000
Truck Driver	\$45,000	\$75,000
Maintenance/Repairer	\$60,000	\$90,000
Mechanic	\$65,000	\$90,000
Senior Mechanic	\$80,000	\$100,000
Mechanic Assistant/ Truck Driver	\$50,000	\$70,000
Senior Building Maintenance Worker	\$55,000	\$75,000
Road Repairer	\$47,000	\$65,000
Senior Maintenance Repairer	\$65,000	\$85,000
Equipment Operator	\$55,000	\$70,000
Road Repairer (P/T)	\$28,000	\$40,000
Traffic Maintenance Worker (Part-time)	\$30,000	\$40,000
Truck Driver/ Landscape	\$50,000	\$75,000
Bus Driver	\$50,000	\$70,000
NON-COLLECTIVE		
Code Enforcement	\$16.00 p/hr	\$30.00 p/hr
Fire Inspector	\$16.00 p/hr	\$30.00 p/hr
Rent Leveling Secretary	\$4,000.00	\$6,000.00
School Crossing Guard	\$20.00 p/hr	\$25.00 p/hr
Class I Special Police	\$17.00 p/hr	\$25.00 p/hr
Class II Special Police	\$20.00 p/hr	\$30.00 p/hr
Police Matron	\$16.00 p/hr.	\$25.00 p/hr
Acting Superintendent of Public Works/Engineer	\$160,000.00	\$180,000.00
Recreation Director	\$24,000.00	\$35,000.00
Food Service Worker	\$16.00 p/hr	\$25.00 p/hr

Section 2

All ordinances governing payment of salaries, wages and compensation heretofore enacted are hereby expressly repealed and all ordinances or part of ordinances inconsistent with this Ordinance are hereby repealed as to such inconsistencies.

Section 3

All provisions of this Ordinance are severable. If for any reason any provision of this Ordinance is held to be invalid, the validity of the remainder of the Ordinance shall not be affected.

Attorney's Report

No Report

Mayor's Report

On August 6th, 2024 we hosted National Night Out. It was well attended and it seemed like everyone had a good time. Thank you to the police and everyone that was involved in the event. It was a great success as it always is.

Council Report

No report

Good & Welfare

Adjournment

Motion to Open: Burke

Seconded by: Asto

Motion to Close: Burke

Seconded by: Asto

**BOROUGH OF FAIRVIEW
BERGEN COUNTY, NEW JERSEY
MINUTES OF THE COUNCIL MEETING
HELD ON AUGUST 20, 2024 AT 6:00 PM**

ATTEST:

BOROUGH OF FAIRVIEW

Diane T. Testa, Borough Administrator/Municipal Clerk

Violetta Berisha, Mayor

Minutes approved at a regularly scheduled council meeting on: